

HOUSE BILL 1423

By Hurt

AN ACT to amend Chapter 262 of the Private Acts of 1963; as amended by Chapter 313 of the Private Acts of 1982; and any other acts amendatory thereto, relative to Lauderdale County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 313 of the Private Acts of 1982, and any other acts amendatory thereto, is amended by deleting SECTIONS 17 and 18 and substituting:

SECTION 17. Notwithstanding this act to the contrary, the County Commission of Lauderdale County shall take such steps as necessary and appropriate for the immediate and orderly relocation of the Probate and Juvenile Court of Lauderdale County to the Justice Complex, including judges, personnel, staff, court files, records, and any and all items necessary for the operation of the Probate and Juvenile Court.

SECTION 18. Notwithstanding this act to the contrary, upon expiration of the full term of the judge presiding over the Probate and Juvenile Court in Lauderdale County, the Probate and Juvenile Court of Lauderdale County shall be dissolved immediately and its jurisdiction and duties transferred, as follows:

(a) In accordance with Tennessee Code Annotated, Section 16-16-201, jurisdiction of probate court matters shall be transferred to the Chancery Court of Lauderdale County, and probate-related clerk duties shall be transferred to the Chancery Court clerk. The County Commission may transfer clerk-related duties under this subdivision (a) at any time after approval and certification of this act in accordance with Section 2; and

(b) In accordance with Tennessee Code Annotated, Section 37-1-210, jurisdiction of juvenile court matters shall be transferred to the General Sessions

Court of Lauderdale County, and juvenile-related clerk duties shall be transferred to the General Sessions Court clerk. The County Commission may transfer clerk-related duties under this subdivision (b) at any time after approval and certification of this act in accordance with Section 2.

SECTION 2. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Lauderdale County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 2.